REPORTABLE (15)

(1) MICHAEL NYIKA (2) CRISPEN TOBAIWA

v

(1) MINISTER OF HOME AFFAIRS (2) COMMISSIONER GENERAL OF POLICE NO (3) INSPECTOR DAMBURAI (4) LISBORNE CHIBANDA

CONSTITUTIONAL COURT OF ZIMBABWE
GWAUNZA DCJ, GARWE JCC, MAKARAU JCC, GOWORA JCC, HLATSHWAYO JCC, PATEL JCC & MAVANGIRA AJCC
HARARE, MARCH 26, 2025 and NOVEMBER 26, 2025

T. Biti, for the applicants

M Chimombe, for the respondents

***GARWE JCC*:**

[1] This is a referral from the High Court of Zimbabwe ("the Court *a quo*") of a constitutional matter in terms of s 175(4) of the Constitution of Zimbabwe, 2013 ("the Constitution"). The question referred to this Court for determination is:

> "Whether the eight months period (*sic*) for suing the police as required by s 70 of the Police Act is unconstitutional in that it violates s 56(1) of the Constitution which guarantees equality before the law and the right to equal protection and benefit of the law, and s 69(2) of the Constitution which guarantees the right to a fair, speedy and public hearing within a reasonable time."

[2] A number of things went wrong before the Court *a quo*. I have considered whether it is possible to turn a blind eye to those shortcomings but have come to the conclusion that the

errors are such that they go the root of the referral procedure and cannot therefore be condoned. The application ought to be struck off the roll on the basis that the court *a quo* failed to follow the prescribed procedure in referring the matter to this Court and, consequently, the referral was a nullity.

FACTS

[3] The applicants were members of the Zimbabwe National Army. The first respondent is cited in his official capacity as the Minister responsible for overseeing the activities of the second to fourth respondents, who are members of the Police Force. The second respondent is the official responsible for administering the members of the Police Service in Zimbabwe. At the relevant time, the third and fourth respondents were members of the Police Force.

[4] On 9 June 2015 the applicants initiated legal proceedings seeking damages for bodily injuries sustained in a shooting incident involving the third and fourth respondents. The applicants narrated the events as follows: On 19 July 2014, they boarded a vehicle at Westgate Shopping Centre at around 11:00 pm heading to Karoi. They were clad in army uniform. Upon reaching Banket Town they transferred to an NP 300 pick-up truck that was also headed to Karoi together with other passengers aboard.

[5] The driver of the truck informed them that he intended to pass through a farm known as Madzibaba Farm. However, due to the darkness, the driver lost his way and ended up at Ashire Mine. A security guard at the mine informed the driver that he had strayed off

course. The driver then made a u-turn and, about 3 kilometers from the mine, the vehicle was stopped by seven police officers armed with FN rifles. Three police vehicles were parked in such a way as to block the road. The officers ordered everyone to disembark from the truck with their hands up and the passengers complied. Despite the applicants' compliance, they allege that the officers proceeded to fire at them, mistakenly believing that they were armed robbers. As a result of the shooting, the applicants suffered serious injuries. It was consequent to these injuries they instituted an action seeking the damages aforesaid. This was approximately eleven months after the fateful incident.

[6] In response to the claim, the respondents raised a special plea of prescription. More specifically, they averred that the applicants had initiated proceedings after the expiration of the eight-month period stipulated in s 70 of the Police Act [*Chapter 11.10*] and that, consequently, their claims had become prescribed. No replication was filed on behalf of the applicants.

[7] The respondents proceeded to file their heads of argument in support of the plea-in-bar seeking an order for the dismissal of the applicants' claim with costs. In response, the applicants also filed their heads of argument, in which, for the first time and, relying on the Prescription Act [*Chapter 8:11*], they argued that prescription had only begun to run from the dates when they were discharged from the hospital in November and October 2014 respectively, rather than from the date of the shooting. They based this argument on s 6(1)(a) of the Prescription Act which states that prescription is delayed if the person is prevented from instituting proceedings due to *vis maior* or any enactment or court order.

[8] Thereafter the applicants filed supplementary heads of argument. It was in those heads of argument that they sought, again for the first time, to impugn the constitutionality of s 70 of the Police Act which imposes an eight-month limit for bringing proceedings against the Police. They argued that s 70 violated their right of access to the courts under s 69(2) and their right to equal protection under s 56(1) of the Constitution. The respondents also filed supplementary heads arguing that s 70 of the Police Act represented a reasonable limitation on the right of access to the courts.

[9] The matter was then set down on the opposed roll for the determination of the special plea of prescription. In a judgment handed down under HH 181-16, the High Court found that s 70 was unconstitutional. Consequently it referred the matter to this Court for confirmation in terms of s 175(4) of the Constitution. In the proceedings for confirmation, this Court determined that the High Court did not have jurisdiction to determine the constitutionality or otherwise of s 70 of the Police Act, given that the constitutional issue had arisen in non-constitutional proceedings. Accordingly, the matter was struck off the roll. Due to the fact that the same matter had previously been struck off the roll due to fatal defects in the referral of the matter and improper citation of the first respondent, an order of costs was made against the applicants.

[10] Following the above decision by this Court, the applicants filed pre-trial conference papers in the High Court outlining the issues to be determined and a summary of evidence to be led at the trial. However, inexplicably, the matter was enrolled on the opposed roll before

a different Judge. The matter that was set down concerned the same plea-in-bar addressed in Judgment No. HH 181-16 which had raised an identical question regarding the constitutionality of s 70 of the Police Act. This occurred notwithstanding the authoritative judgment delivered by this Court under CCZ 5-20 striking the matter off the roll with costs. The same legal practitioner who had represented the applicants both before the High Court and the Constitutional Court failed to disclose to the presiding Judge of the High Court that this Court had already pronounced itself on the issue.

[11] After hearing submissions from the parties, the court reserved judgment on the matter. It was in the course of preparing its judgment on the opposed matter that the court somehow became aware of the decision of this court in CCZ 5-20. It then invited the parties to appear before it so that they could make submissions taking into account that judgment.

[12] When counsel appeared before the presiding judge, they conceded that they had repeated the same error previously made in the proceedings which were found to be invalid by this Court. They acknowledged that the High Court lacked the jurisdiction to determine the constitutionality of s 70 of the Police Act as part of the non-constitutional matter pending before it. Both counsel agreed that the presiding judge should refer the constitutional question *mero motu* to the Constitutional Court in terms of s 175(4) of the Constitution. The parties opted to rely on the same heads of argument that had previously been filed before the same court in 2015 on the constitutionality of the provision. The Court *a quo* then referred to this Court the question whether s 70 of the Police Act was unconstitutional.

In its judgment, the Court *a quo* made it clear that it was referring the matter *mero motu* at the suggestion of the parties.

APPLICANTS' SUBMISSIONS BEFORE THIS COURT

[13] At the commencement of the hearing, the Court enquired from counsel for the applicants whether the question relating to the constitutionality of s 70 of the Police Act [*Chapter 11:10*] had been properly referred by the High Court and whether the referral was made *mero motu* or at the request of the parties.

[14] In response, counsel submitted that the matter had been properly referred by the court *a quo* at the request of the parties. He explained that, although the Court did not explicitly state whether the application for referral was frivolous or vexatious, it had considered the question. He also argued that, in considering that question, the Court had concluded that the constitutionality of s 70 of the Police Act was critical, given that it frequently arises in cases before it. He further argued that, despite the absence of a statement of agreed facts and the court not determining the facts of the case, the facts were common cause and no party had been prejudiced by this omission.

RESPONDENTS' SUBMISSIONS BEFORE THIS COURT

[15] Per *contra*, counsel for the respondents argued that the matter was not properly referred to this Court. He submitted that, in terms of r 24 of the 2016 Rules, which was applicable at the relevant time, the referring court was required to either determine the facts or the parties must file a statement of agreed facts. He contended that, because of this omission, this

Court cannot relate to the facts that gave rise to the current application. Counsel averred that the facts of the case are not common cause. He pointed out that when the question of the constitutionality of s 70 of the Police Act arose, the respondents had only filed a plea–in–bar but had not yet filed their plea to the applicants' claim. Not having filed a plea, the facts alleged by the applicants were not therefore common cause. He conceded having previously consented in the High Court to the matter being referred to this court but submitted that this was not in accordance with the procedure outlined in s 175 of the Constitution.

ISSUE ARISING FOR DETERMINATION

[16] The important issue that arises for determination is whether the referral of the matter from the Court *a quo* to this Court was properly made. This entails an assessment of whether the requirements of s 175(4) of the Constitution and r 24 of the then Rules of this Court (Rule 29 in the current Rules), which govern the referral of cases to this Court, have been duly met.

THE LAW

[17] The referral of matters to this Court is governed by the provisions of s 175(4) of the Constitution, read together with r 29 of this Court's Rules. These provisions establish the procedural framework within which a court may properly refer a matter to this Court for determination. It is only when the referring court has complied with the requirements of s 175(4) that the jurisdiction of this Court is properly engaged. A failure to adhere to these

requirements renders the referral defective and thus incapable of triggering this Court's jurisdiction.

[18] Section 175(4) of the Constitution provides that:

> "If a constitutional matter arises in any proceedings before a court, the person presiding over that court may and, if so requested by any party to the proceedings, must refer the matter to the Constitutional Court unless he or she considers the request is merely frivolous or vexatious."

[19] The section therefore contemplates two instances where a referral may be made. Firstly, the referral may be made by the presiding judicial officer *mero motu* in the course of proceedings that are non-constitutional in nature where the judicial officer forms the opinion that the determination of the constitutional question will assist in the resolution of the issues before him or her. In such a case, however, the court is required to afford the parties involved an opportunity to make submissions on the constitutional question sought to be referred *mero motu* by the Court. This Court has stressed this in a number of decisions. The current Rules of this Court, in r 29, provide the same requirements.

[20] Secondly, the Court may refer the matter at the instance of a party. Where a constitutional issue arises in non-constitutional proceedings, a litigant may make an application requesting the presiding officer to refer the constitutional issue to the Constitutional Court. If the court is satisfied that the request is not frivolous or vexatious, it is obliged to refer the constitutional issue for determination by the Constitutional Court.

[21] For the matter to be referred in accordance with r 29(2) of the Rules, the applicant must make the request. In *Navaya* v *Mutetwa N.O.* & *Anor* 2020 (2) ZLR 828 (CC), p 382, this Court stated:

> "For the procedural remedy provided for under s 175(4) of the Constitution to be properly invoked, there must be evidence that a request was made by a party to the proceedings for the constitutional matter which would have arisen or been raised in the proceedings in the subordinate court to be referred to the Court for determination. The presiding person is obliged to refer the constitutional question to the Court for determination unless he or she considers the "request" to be merely frivolous or vexatious.
>
> What was presented to the court *a quo* was an application. No "request" was made to the presiding person to refer to the Court the constitutional question the applicant considered to have arisen from the proceedings in the court *a quo*."

[22] Further, the law requires the presiding officer to make findings of fact concerning the constitutional matter in question. In *Muhala* v *Mukokera* & *Or*s 2019 (1) ZLR 294, (CC) p299, this Court stated that:

> "A perusal of the presiding magistrate's ruling shows that she did not make any findings of fact in referring the matter to this Court. That is a serious misdirection. A constitutional question does not arise in a vacuum. It is an issue that arises from the facts of a particular matter. Put differently, for the court to find that there is a constitutional matter that warrants a referral to this Court, the question must arise from the facts before the referring court. This is particularly important considering that there are many instances where an analysis of the facts would make it palpably apparent that no constitutional matter would have arisen. Factual findings and their relevance to the alleged constitutional violation are crucial in the determination of whether the request for referral is frivolous or vexatious."

[23] Likewise, in *Mugadza* v *Minister of Defence* & *Or*s CCZ–23–17 at p 6, this Court stated:

> "…… the point has repeatedly been made that it is the duty of the lower court referring a constitutional issue to this court to resolve disputes of fact before making such a referral. This court does not, generally speaking, have the capacity to hear evidence and entertain cross–examination of witnesses. This is the role of the lower courts. This court is required to determine constitutional issues arising from specific findings of fact made by the lower court."

See also *Williams* & *Ors* v *The State* CCZ–14–17 at pp 8-9; S v *Makaza* & *Anor* 2017(2) ZLR 16 (CC)*;* S v *Gumbo* & *Anor* CCZ–16–17 at pages 12–13, paragraphs 11–12.

[24] Where the facts in issue are not common cause, it is incumbent upon the parties to lead evidence. This principle was set out in S v S*ibanda* 2017(2) ZLR (CC) 88 at p 92 where this Court remarked:

> "I readily accept that there are cases where the leading of evidence will not be necessary, particularly where the facts giving rise to the request are common cause. In such a case it would serve no meaningful purpose for the parties to be required to give *viva voce* evidence. Where however the facts are not common cause, the parties must, as a general rule, be required to give evidence."

[25] If there is no dispute of facts, the parties must draft a statement of agreed facts. This is reinforced by r 29(4) which provides that:

> "Where there are factual issues involved, the court seized with the matter shall hear evidence from the parties and determine the factual issues:
> Provided that where there are no disputes of fact the parties shall prepare a statement of agreed facts."

[26] In interpreting r 29 (r 24 in the repealed Rules), the Court in S v S*ibanda*, s*upra*, at p 91 remarked:

> "Rule 24 of the Constitutional Court Rules, 2016 has made provision for the procedure to be followed in referrals of matters to this court, whether by a court *mero motu* or at the request of a party to the proceedings. Sub rule 4 thereof further provides that where there are factual issues involved, the court seized with the matter shall hear evidence from the parties and determine those factual issues. Where there are no disputes of fact, the parties are required to prepare a statement of agreed facts. Further, the record of the proceedings is required to contain evidence led by both parties and the specific findings of fact made by the judicial officer and the issue or question for determination by this court." (underlining for emphasis)

[27] It is only after hearing evidence from both sides that the Court would be in a position to make findings of facts. It is on the basis of those findings that the Court is called upon to determine whether the request is frivolous or vexatious. In this regard it was pertinently pointed out in S v *Mwonzora* & *Or*s CCZ–9–15 at p 5, para 16 that:

> "The absence of oral evidence can be fatal to an application of this nature because it completely disables findings to be made on the complaints raised. It is on the basis of those findings that the Court is called upon to deal with the allegations raised and, where necessary, afford appropriate relief."

[28] Further, the court must formulate the question for determination. In *William*s & *Or*s v *The State*, *supra*, at pp 8-9 the Court held:

> "*In casu* the magistrate's ruling is confusing as to what charge the applicants were facing between 2(f) and 2(v) as both are interchangeably referred to. Clearly the magistrate did not address her mind to this aspect. She did not carry out an analysis of the facts and the constitutional provisions that may be violated. She did not apply her mind to the principles for referral. <u>It is thus not surprising that she did not, in her ruling, formulate or state the constitutional question requiring determination by this Court,</u> let alone her opinion as to whether the raising of that question is merely frivolous or vexatious …" (*emphasis added*)

[29] A reading of the judgment of the court *a quo* does not make it clear whether the issue was referred *mero motu* by the court or at the instance of the parties. The judgment appears to suggest that the parties agreed that the issue should be referred by the court *mero motu*. This is a strange procedure not known to the law. This is what the Court *a quo* said:

> "Counsels agreed that I refer the constitutional question *mero mutu* to the Constitutional Court in terms of s 175(4) of the Constitution. They decided to abide by the submissions already made in their heads of arguments ……"

[30] The court relied on the submissions made in the context of the opposed application on the plea-in-bar in respect of which it had reserved judgment. This procedure is incorrect. The court *a quo* ought to have invited submissions on the specific question being referred, rather than relying on general arguments pertaining to the opposed matter that had erroneously been enrolled before it.

[31] Alternatively, had the matter been referred at the instance of the applicants, a formal request, either oral or written, should have been made. See *Tomana & Anor* v *Judicial Services Commission & Anor* HH 281-16 p18. In this case, no such request was made although counsel for the applicants strenuously argued before this Court that the matter was referred by the court at the instance of the parties.

[32] Clearly, the law does not envisage a situation where both procedures are adopted simultaneously. Therefore, the approach of the Court *a quo* was procedurally flawed. Even assuming, as argued by counsel for the applicants, that the court referred the matter at the instance of the parties, it is apparent that the court did not follow the requisite procedure applicable where a matter is to be referred at the instance of the parties. There was no request made, the court did not make a determination on the facts, nor did the parties prepare a statement of agreed facts.

[33] Further, the court did not determine whether or not the question sought to be referred was frivolous and vexatious. Whilst accepting that the issue was critical to the resolution of the plea-in-bar, the court relied on the fact that the issue had arisen in several matters in which

proceedings have been instituted against the Police and that the matter therefore required the Constitutional Court to provide guidance on the legality of the provision "which has been the subject of legal discourse over the years."

[34] It was insufficient for the Court merely to note that numerous cases involving the constitutionality of s 70 had come before it. A referral in terms of s 175(4) is only competent where the constitutional question is material to the outcome of the case at hand. The relevance of the constitutional issue must be clearly stated in determining whether or not the request is not frivolous or vexatious.

[35] There is a further reason why the referral was doomed to fail before this Court. The matter was referred to this Court in circumstances where the applicants had not replicated to the special plea raised. Where a plea of prescription is raised, there should be a replication. Rule 42(9) of the High Court Rule, 2021 imposes an obligation on a legally represented litigant to file a replication where a special plea is raised. The rule provides as follows:

> "Where the other party is represented by a legal practitioner, he or she within ten days of receipt of the exception, special plea or application to strike out and the heads of argument accompanying it, file his or her replication and heads of argument and whereupon, the registrar shall give such party a set down date within a month from the date of filing."

[36] In *Brooker* v *Mudhanda* & *Anor; Pearce* v *Mudhanda* & *Anor* 2018 (1) ZLR 33 (S), at p 40, it was held that:

> "After being served with the special plea of prescription, the respondent should have replicated. The purpose of a replication is to inform the court and the defendant of the plaintiff's rebuttal to the special plea. The failure by the respondent to file a replication to the special plea means that there are no

> disputes for determination on the special plea. In the absence of such replication there would be no issue for determination by the court *a quo.*"

[37] At the time the matter was referred to this Court, it was unclear from the pleadings whether the applicants were opposed to the plea. The plea was not rebutted and in the absence of such rebuttal, it follows that no dispute existed for the Court *a quo* to adjudicate. The raising of the constitutionality of s 70 in supplementary heads of arguments filed months later was clearly an afterthought which did not cure the failure to replicate to the special plea.

[38] At the time of referral, therefore, no clear dispute had crystallised on the pleadings. The absence of a replication meant that the special plea stood unchallenged and, as such, no constitutional issue had properly arisen before the court below. It is trite that a constitutional issue should not be determined in a factual or procedural vacuum. The court's jurisdiction to pronounce on constitutional validity is triggered only where a real, ernest and vital dispute arises, which was not the case here. See *I. Currie & J. De Waal*, The Bill of Rights Handbook, 6th Edition (2013) at p72.

[39] The Court has made it clear that in respect of matters referred to it in terms of s 175(4), it is always obliged to determine whether a referral was properly made. If not, the matter will be disposed of without further ado, on that ground alone – see *Patricia Dengezi* v *Munyaradzi & Ors* CCZ 13/23 at para 20.

COSTS

[40] The applicants have submitted that the Court should not make an order as to costs. The respondents have also not sought a costs order. While it is rare for the Court to grant costs in constitutional matters, it is my considered view that the applicant's conduct warrants such an award, more particularly because of the manner in which the applicant's legal practitioner handled this case. As will be apparent from the decision of this Court in *Michael Nyika*, *supra*, the matter had previously been struck off the roll due to fatal defects in the referral of the matter and the improper citation of the Minister. The applicants had again proceeded to apply on the same record for confirmation of constitutional invalidity. It was that application that was struck off with costs in CCZ 5/20.

[41] Notwithstanding this Court's decision in the above matter, the applicants proceeded to request for a pretrial conference and, in a surprising turn of events, then set the special plea down for determination as an opposed matter despite a clear pronouncement by this Court that the High Court lacked jurisdiction to determine the constitutionality of s 70 of the Police Act. The decision of this Court should have guided the applicants' legal practitioners. Instead, the applicants adopted the same procedure, raising the same constitutional question in the same wrong forum and without adhering to the proper procedures. Such conduct demonstrates negligence and a disregard for this Court's previous guidance. The procedure under s 175 (4) of the Constitution is one that should be taken seriously. At the very least, the legal practitioners ought to have been candid with the Court *a quo* during the hearing of the opposed matter and highlighted the existence of the judgment under CC-5-20.

[42] As already noted, the Court *a quo* only became aware of the previous decision of this Court after reserving judgment in the opposed matter enrolled before it. Thereafter the applicants casually requested that the court refer the matter *mero motu*, a procedure that is not contemplated by the law. Even at the hearing of the matter before this Court, counsel for the applicants persisted with the argument that the referral had been properly made, notwithstanding the abject failure on the part of the applicants to comply with the basic procedural requirements for referral. The present proceedings constitute the third occasion on which the same matter, based on the same facts, yet again comes before this Court but inevitably must to be struck off the roll for failure to comply with the laid down procedures.

[43] On the facts of this matter, an order of costs on the higher scale - and possibly *de bonis propriis* – may well be warranted. However the respondents did not seek any costs order, in all probability because their Counsel had not familiarised himself with the background of this matter just referred to. In these circumstances and, as a mark of its displeasure at the conduct of the applicants and their legal practitioner, an award of costs on the ordinary scale appears to the Court to be appropriate.

DISPOSITION

[44] Regard being had to the foregoing, this Court finds that the referral of the question on the constitutionality of s 70 of the Police Act was not properly made in terms of s 175(4) of the Constitution and the then r 24 of the Constitutional Court Rules, 2016. The matter is therefore a nullity. Being a nullity, it follows that this Court has no jurisdiction to entertain the same.

[44] In the result, it is ordered as follows:

1. The matter be and is hereby struck off the roll.

2. The applicants are to pay the respondents' costs on the ordinary scale.

GWAUNZA DCJ	**:**	**I AGREE**
MAKARAU JCC	**:**	**I AGREE**
GOWORA JCC	**:**	**I AGREE**
HLATSHWAYO JCC	**:**	**I AGREE**
PATEL JCC	**:**	**I AGREE**
MAVANGIRA AJCC	**:**	**I AGREE**

Tendai Biti Law – Applicants Legal Practitioners

Civil Division of the Attorney General's Office – Respondents Legal Practitioners